

CAR LOAN AGREEMENT

Document No.: HL/2026/007543

Date: 20/01/2026

Place: Pune, Maharashtra

1. THE PARTIES

LENDER (Financial Institution):

Name: **HDFC Bank Limited**

Address: HDFC Bank House, Senapati Bapat Marg, Dadar West

City: Mumbai | State: Maharashtra | Pin Code: 400028

Phone: 022-6657-4000 | Email: carloan@hdfcbank.com

Branch: Pune Kondhwa Branch

BORROWER (Debtor):

Name: **Mr. Rohan Kumar Singh**

Age: 35 years | Occupation: Software Engineer, Tech Company

Address: 5th Floor, Maple Heights, Viman Nagar

City: Pune | State: Maharashtra | Pin Code: 411014

Phone: +91-9876543210 | Email: rohan.singh@techmail.com

PAN: DYIPS5489Q | Aadhaar: 654321****(Last 4 digits)

Co-Borrower (if applicable):

Name: **Mrs. Priya Singh**

Relationship: Spouse

Age: 33 years | Occupation: Senior HR Manager

PAN: ELYPS2147R

2. VEHICLE DETAILS

The Vehicle purchased by the Borrower is described as follows:

Particulars	Details
Make/Manufacturer	Hyundai Motor Company
Model	Creta SX (O) Diesel Automatic
Year of Manufacture	2026
Body Type	SUV - 5 Door
Color	Pearl White (Arctic White)
Engine Number	HUN4D0089HE6789234
Chassis Number	KMHEC4A46HU987654
Vehicle Identification Number (VIN)	KMHEC4A46HU987654

Particulars	Details
Registration Number	MH-02-CD-9876
Engine Capacity	1668 cc
Fuel Type	Diesel
Odometer Reading	0 km

Hereinafter referred to as the “Vehicle”

3. LOAN DETAILS

Particulars	Amount
Vehicle Showroom Price	Rs. 13,45,000
Road Tax and Registration	Rs. 85,000
Insurance (1st Year Premium)	Rs. 54,800
Accessories (Roof Rails, Spoiler)	Rs. 62,000
Total Vehicle Cost	Rs. 14,46,800
Down Payment by Borrower	Rs. 3,00,000
Loan Amount (Principal)	Rs. 11,46,800
Processing Fee	Rs. 17,202
Total Amount to be Disbursed	Rs. 11,64,002

Loan Disbursement Date: 25/01/2026

Disbursement Mode: Direct to dealer account

4. INTEREST RATE AND TENURE

Rate of Interest: 8.75% per annum (compounded monthly)

Loan Tenure: 60 months (5 years)

Loan Commencement Date: 25/01/2026

Loan Maturity Date: 24/01/2031

Applicable Charges: GST @ 18% on all processing fees and charges

5. PAYMENT SCHEDULE

Payment Frequency: Monthly

Equated Monthly Installment (EMI): Rs. 23,847/-

Payment Due Date: The 25th day of every month

First Payment Due: 25/02/2026

Final Payment Due: 24/01/2031
Total Amount Payable: Rs. 14,30,820/-
Total Interest Payable: Rs. 2,66,818/-

Amortization Schedule (First 12 Months and Last 2):

Month	Due Date	Principal	Interest	EMI	Outstanding Balance
1	25/02/2026	15,898	7,949	23,847	11,30,902
2	25/03/2026	16,018	7,829	23,847	11,14,884
3	25/04/2026	16,140	7,707	23,847	10,98,744
4	25/05/2026	16,264	7,583	23,847	10,82,480
5	25/06/2026	16,389	7,458	23,847	10,66,091
6	25/07/2026	16,516	7,331	23,847	10,49,575
7	25/08/2026	16,645	7,202	23,847	10,32,930
8	25/09/2026	16,775	7,072	23,847	10,16,155
9	25/10/2026	16,907	6,940	23,847	9,99,248
10	25/11/2026	17,040	6,807	23,847	9,82,208
11	25/12/2026	17,175	6,672	23,847	9,65,033
12	25/01/2027	17,311	6,536	23,847	9,47,722
59	25/12/2030	23,501	346	23,847	46,319
60	25/01/2031	23,614	233	23,847	0

6. PAYMENT METHOD

All payments shall be made by the Borrower to the Lender through:

- **Primary Method:** Standing Instruction (SI) / Auto-debit from Borrower's Bank Account
- **Alternative Methods:** Cheque / Demand Draft, Bank Transfer (NEFT / RTGS)

Payment Instructions:

- **Account Name:** HDFC Bank Limited - Auto Loan Division
- **Bank Name:** HDFC Bank Limited
- **Account Number:** 789456123456789
- **IFSC Code:** HDFC0000021
- **Branch Address:** HDFC Bank, Pune Kondhwa, Pune, Maharashtra 411014

- **Beneficiary Code:** CARLN002

Mandate: Standing Instruction (SI) mandate to be executed on or before 15/02/2026

7. LATE PAYMENT AND DEFAULT CHARGES

- **Late Fee:** Rs. 500 or 1.00% of the EMI amount, whichever is higher, if payment is not made within 5 days from the due date.
 - **Default Interest:** An additional interest rate of 2.00% per annum over the contractual rate (i.e., 10.75% p.a.) shall be charged on overdue amounts after 10 days of non-payment.
 - **Penalty for Bounce of Cheque:** Rs. 750 per cheque bounce or as per bank charges (whichever is applicable).
 - **Legal Notice Charges:** Rs. 2,500 for issuance of legal notice by bank's solicitors.
 - **Repossession Notice Charge:** Rs. 5,500 for issuing repossession warning notice.
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8. SECURITY/COLLATERAL

The Borrower hereby pledges and hypothecates the Vehicle (as described in Section 2) as security for the repayment of the Loan, together with all principal and interest and other charges due.

- **Hypothecation:** The Vehicle shall be hypothecated in favor of HDFC Bank Limited under the Securitization and Reconstruction of Financial Assets and Enforcement of Security Interest (SARFAESI) Act, 2002.
- **Registration Certificate:** The Vehicle's RC shall be endorsed with HDFC Bank Limited's name as hypothecatee (financer). The Borrower shall receive a temporary RC copy, while the original RC shall be held by the bank.
- **Title Transfer:** In the event of default and after following prescribed legal procedures, the Vehicle may be sold to recover outstanding amounts. The bank retains the right to repossess without court intervention under SARFAESI.
- **Insurance:** Comprehensive insurance policy mandatory with HDFC Bank Limited named as loss payee and insured interest noted. Third-party and own damage coverage minimum required.

- **Registration with CERSAI:** The loan shall be registered with Central Registry of Securitisation Asset Reconstruction and Security Interest (CERSAI) within 30 days.
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9. PREPAYMENT AND EARLY SETTLEMENT

- The Borrower has the right to prepay the entire loan or make partial prepayments without penalty, subject to bank's prepayment policy.
 - **For Partial Prepayment:** Minimum amount of Rs. 10,000. The amount shall be adjusted first to accumulated interest and then to the principal outstanding.
 - **For Full Prepayment:** No prepayment penalties or charges applicable. However, a **Loan Closure Certificate Fee** of Rs. 500 is payable.
 - Upon full prepayment, the Lender shall issue a No-Objection Certificate (NOC), discharge CERSAI registration, and release hypothecation on RC within 10 business days.
 - **Statement of Account** shall be provided within 7 business days of final payment.
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10. BORROWER'S OBLIGATIONS

The Borrower agrees to:

1. Repay the loan amount in full along with accrued interest as per the agreed payment schedule.
2. Obtain and maintain comprehensive insurance on the Vehicle throughout the loan tenure with premium paid regularly.
3. Maintain the Vehicle in good condition and carry out all manufacturer-recommended services and maintenance on time.
4. Register the Vehicle with the Regional Transport Authority (RTA) under the Motor Vehicles Act, 1988.
5. Obtain the hypothecation endorsement on the Vehicle's Registration Certificate within 30 days of vehicle purchase.
6. Not sell, transfer, pledge, or create any lien on the Vehicle without the Bank's prior written consent.
7. Not use the Vehicle for commercial taxi services, public transport, or any illegal/prohibited purposes.

8. Maintain all necessary permits, licenses, and valid driving license for operating the Vehicle.
 9. Pay all applicable taxes (road tax, GST, etc.), registration renewal fees, and traffic challans within stipulated period.
 10. Provide regular maintenance and keep the Vehicle in insurable and road-worthy condition at all times.
 11. Inform the Bank immediately (within 48 hours) of any accident, damage, theft, or insurance claim related to the Vehicle.
 12. Allow the Bank authorized representatives to inspect the Vehicle at any reasonable time upon giving 7 days advance notice.
 13. Not modify the Vehicle, remove safety features, or change its registered number plate without bank's written consent.
 14. Not leave India for continuous stay exceeding 6 months without settling the loan or obtaining bank's written permission.
 15. Inform the Bank of any change in address, contact number, or employment status within 15 days.
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11. LENDER'S RIGHTS

- **Repossession:** In case of default and after issuing notice under SARFAESI Act, the Bank has the right to repossess the Vehicle without court order.
- **Legal Action:** The Bank may initiate legal action through competent courts or SARFAESI proceedings to recover outstanding amounts and interest.
- **Insurance Proceeds:** The Bank shall have the first right to insurance proceeds in case of total loss, theft, or accidents.
- **Inspection:** The Bank may inspect the Vehicle and verify Borrower's financial condition at any time with prior notice.
- **Sale of Vehicle:** The Bank can sell the repossessed vehicle through open auction or private sale and recover dues. Surplus amount shall be returned to borrower.
- **Modification of Terms:** The Bank may modify interest rates and charges with prior notice of 30 days (applicable from date specified in notice).
- **Cross-Default:** Default in other obligations to the Bank may trigger acceleration of this loan.

12. REPRESENTATIONS AND WARRANTIES

The Borrower represents and warrants that:

- The Borrower has the legal capacity and authority to enter into this Agreement and is not a minor.
- The Borrower is the legal owner of the vehicle funds and has the right to pledge it as collateral for this loan.
- No other claims, liens, encumbrances, or prior mortgages exist on the Vehicle.
- All information provided by the Borrower in the application form (income, employment, assets, liabilities) is true, accurate, and complete to the best of knowledge.
- The Borrower is not in breach of any existing loan agreements or financial obligations with any other financial institution.
- The Borrower has the legal authority to pledge the Vehicle as security and has disclosed all material facts.
- The purpose of the loan is for personal use and not for commercial trading purposes.
- The Borrower has disclosed all existing loans, liabilities, and contingent obligations.

13. COVENANTS AND UNDERTAKINGS

1. The Borrower shall comply with all applicable laws, regulations, and rules related to vehicle ownership, operation, and usage.
2. The Borrower shall not leave India for permanent emigration or long-term employment (exceeding 6 months) without settling the outstanding loan balance.
3. The Borrower shall maintain an active comprehensive insurance policy with valid coverage and timely premium payments.
4. The Borrower shall not engage in any activity that would adversely affect the value, condition, or marketability of the Vehicle.
5. The Borrower shall cooperate with the Bank in all matters related to the Vehicle, loan administration, and compliance.
6. The Borrower shall keep the Bank informed of any material change in financial position, employment status, or personal circumstances.

7. The Borrower shall maintain the Vehicle's roadworthiness certificate (RC and Fitness) valid at all times.
 8. The Borrower shall ensure the Vehicle is always properly registered with a current road tax payment.
 9. The Borrower shall not allow any unlicensed person to drive the Vehicle or use it in violation of its registration conditions.
 10. The Borrower shall not use the Vehicle in any manner that would invalidate the insurance policy.
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14. EVENTS OF DEFAULT

The Borrower shall be considered in default if:

1. Payment of any monthly installment is not made within 10 days of the due date.
 2. The Vehicle insurance policy lapses, is not renewed, or becomes invalid for any reason.
 3. The Vehicle is sold, transferred, pledged, or gifted without the Bank's prior written consent.
 4. The Borrower provides false, misleading, or fraudulent information in the application or related documents.
 5. The Borrower fails to maintain the Vehicle in insurable and roadworthy condition.
 6. The Borrower is declared insolvent, bankrupt, or undertakes insolvency proceedings.
 7. Any judgment or legal decree against the Borrower for non-payment of other debts remains unsatisfied for 15 days.
 8. The Borrower violates any terms and conditions of this agreement and fails to rectify within 30 days of notice.
 9. The Borrower leaves India permanently without settling the loan or obtaining bank's consent.
 10. The Borrower commits fraud, misrepresentation, or concealment of material facts.
 11. The Vehicle registration is cancelled or RC is impounded by authorities.
 12. There is any change in Borrower's employment status if salaried income was basis for loan approval.
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15. CONSEQUENCES OF DEFAULT

Upon default by the Borrower, the Bank shall have the following rights:

1. **Acceleration:** All remaining installments shall become immediately due and payable upon demand.
2. **Repossession:** The Bank may repossess the Vehicle without court order under SARFAESI provisions by issuing a warning notice. The Bank may enter the Borrower's premises to take possession.
3. **Sale of Vehicle:** The Bank may sell the repossessed Vehicle through public auction or private sale to recover outstanding amounts. A notice of 30 days shall be given before auction.
4. **Legal Action:** The Bank may initiate legal proceedings under applicable laws, including SARFAESI Act, Consumer Protection Act, and the Indian Contract Act.
5. **Interest and Charges:** Default interest at the specified rate shall continue to accrue on the outstanding balance until full payment.
6. **Collection Charges:** All costs incurred in collection, legal fees (on solicitor-client basis), recovery agent fees, auction charges, and other enforcement expenses shall be borne by the Borrower as additional liability.
7. **Credit Bureau Reporting:** Details of the default shall be reported to credit information bureaus (CIBIL, Equifax, etc.), adversely affecting the Borrower's credit score.
8. **Cease Facility:** The Bank may cease any other banking facilities, overdraft, or credit facilities extended to the Borrower.

16. GOVERNING LAW AND DISPUTE RESOLUTION

- This Agreement shall be governed by and construed in accordance with the laws of India, including the Motor Vehicles Act, 1988; Indian Contract Act, 1872; and the Securitization and Reconstruction of Financial Assets and Enforcement of Security Interest (SARFAESI) Act, 2002.
- **Dispute Resolution Mechanism:**
 1. **Mutual Negotiation:** Initial disputes shall be resolved through direct communication and negotiation (within 30 days).
 2. **Banking Ombudsman:** If not resolved, either party may file a complaint with the Banking Ombudsman under the Banking Regulation Act with prescribed fee.

3. **Arbitration:** If still unresolved, disputes shall be referred to arbitration as per Arbitration and Conciliation Act, 1996. Single arbitrator shall be appointed by mutual consent.
 4. **Jurisdiction of Courts:** Exclusive jurisdiction of courts in Pune / Maharashtra shall apply for matters where arbitration is not applicable.
- The Borrower shall not initiate legal proceedings in any court other than those specified above.
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17. NOTICES AND COMMUNICATION

All notices and communications under this Agreement shall be in writing and may be delivered: - Personally to the address specified above - By registered post with acknowledgement due - By email with delivery and read receipt - By SMS to the registered mobile number

Notice shall be deemed received within 5 business days of sending via registered post, or immediately upon receipt if delivered personally or via email.

18. LOAN CANCELLATION AND WITHDRAWAL

The Bank reserves the right to cancel or withdraw this loan offer if: - The Borrower provides false or incomplete information - Adverse credit bureau report is received after loan approval - The Vehicle's valuation decreases substantially before disbursement - The Borrower defaults on any existing obligation with the Bank - The Vehicle is found to have pre-existing damage or lien

In case of cancellation, any disbursed amount shall be repaid by the Borrower within 15 days without any interest.

19. MISCELLANEOUS PROVISIONS

- **Entire Agreement:** This Agreement constitutes the entire agreement and supersedes all previous communications and understandings.
- **Amendments:** No amendments or modifications are valid unless in writing and signed by authorized representatives of both parties.
- **Severability:** If any provision is found invalid or unenforceable, the remaining provisions shall continue in full effect.
- **Waiver:** No waiver of any term constitutes waiver of any other term or breach.

- **Confidentiality:** Both parties shall maintain confidentiality of all commercial and personal information disclosed.
 - **Counterparts:** This Agreement may be executed in multiple counterparts, each constituting an original.
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20. ACKNOWLEDGMENT AND ACCEPTANCE

The Borrower acknowledges that:

- They have read and understood all terms and conditions of this Agreement
 - They have been given opportunity to seek legal advice
 - They accept all terms willingly and without duress
 - They understand the implications of default and consequences
 - They agree to comply with all applicable laws and regulations
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21. EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date mentioned above.

FOR THE LENDER:

Signature: _____
 Name: _____
 Designation: _____
 Date: _____
 Stamp: _____

FOR THE BORROWER:

Signature: _____
 Name: _____
 Date: _____

FOR THE CO-BORROWER (if applicable):

Signature: _____
 Name: _____
 Date: _____

DOCUMENTS ATTACHED (ANNEXURE)

- Annexure A: Vehicle Registration Certificate (RC) Copy
- Annexure B: Insurance Policy Details

- Annexure C: Income Proof and Employment Certificate
- Annexure D: Bank Account Details and Standing Instruction (SI) Mandate Form
- Annexure E: Identity and Address Proof (Aadhaar, PAN, Passport)
- Annexure F: Valuation Report of Vehicle
- Annexure G: Terms and Conditions - Detailed Schedule